

US Department of Agriculture (USDA)



Statement of Work

Contents

Project 3

General Information..... 3

 1.0 Scope of Work 3

 2.0 Background..... 3

Contractor Requirements 3

 3.0 Technical Requirements / Tasks..... 3

 4.0 Government Furnished 5

 5.0 Deliverables / Schedule 5

 6.0 Contractor Key Personnel.....-----5

 7.0 Security Requirements..... 5

Project

General Information

1.0 Scope of Work

Identifying, sorting, packaging, and discarding a collection of several hundred waste chemicals housed in the MS State USDA-ARS Location chemical solvent storage building.

2.0 Background

After several years of waste chemicals being stored and not discarded, the MS State location has 900+ containers of waste chemicals. There are laboratory chemicals as well as agricultural chemicals in the collection. Most are labeled and inventoried, but many are not. This project would involve identifying and sorting; then packaging, shipping, and discarding the vast collection of waste chemicals. The chemicals are currently housed in the location's chemical solvent storage building. This building has one standard 3x7 metal blast resistant door on each end, is well lit and well ventilated; but, has no air conditioning.

Contractor Requirements

3.0 Technical Requirements / Tasks

Contractor is responsible for safely and ecologically packing, transporting, and discarding a collection of waste chemicals. The chemicals range in toxicity, volatility, causticity, and harmful from safe to very hazardous. Location personnel will assume no responsibility for the waste inventory once the contractor is on-site.

Upon arriving at the facility, the contractor will report to the Location's Administration building, (Building 35, 150 Twelve Lane, Miss. State, MS 39762) and contact the Location Safety and Occupational Health Special, (Boo Matthews, 662.722.8021). Mr. Matthews will escort the contacting personnel to the chemical solvent storage building and provide access. All Contractor personnel will be required to sign in the location visitor's log daily and wear a visitor badge at all times while on the location premises. Contractor personnel will be under the guidance and supervision of the contracting company and will be expected to recognize all OSHA and EPA standards.

Contracting company must maintain a chemical manifest, comply with hazardous manifest rules (40CFR part 262, subpart B when shipping to designated facility, and ship waste to a RCRA designated facility with 60 days of cleanup start. Contractor is responsible for providing the Location Safety Specialist records including event dates, description, waste details, management method and information on the receiving facility and transporters.

The contractor will provide all services necessary for the final treatment/disposal of the hazardous and universal wastes listed in the schedule in accordance with all local, state, and federal laws, and regulations, and the terms and conditions of this contract.

The contractor will comply with, and ensure that all applicable subcontractors comply with, all requirements of United States Department of Transportation (DOT) regulations, 49 CFR Parts 100-199, regarding waste transportation under this contract. Complete compliance with these regulations shall include, but not be limited to, ensuring that emergency response information is carried on transport vehicles and maintained at facilities where hazardous materials are received, stored, or handled during transportation. Shipping papers will contain an emergency response telephone number supplied by the disposal contractor which is monitored 24 hours a day in order to provide immediate, detailed emergency information to personnel reacting to emergencies. Technical names will be included in the descriptions of materials reflected on shipping papers by "not otherwise specified" (n.o.s.) descriptions. Definitions of the terms used in this clause are those used in 49 CFR 100-199. Contractors must ensure that off-site shipments of hazardous waste are labeled, marked, and placarded according to the U.S. DOT requirements. Contractor remains responsible for proper management of waste even after it leaves Agricultural Research Service Property. This includes responsibility for any spill while in transit.

The Contractor shall provide obtain all state hauling permit numbers where appropriate. The applicable state hauling permit numbers must be provided for the state where the pick-up site is located, the state(s) where the interim storage facilities are located as listed in their TSDF plan and the state(s) where the disposal facilities are located as listed in the TSDF plan.

The transporters approved for use under this contract are only approved subject to all services being performed in accordance with all federal, state, and local laws and regulations and the transporter's permit.

The contractor is solely responsible for any and all spills or leaks and subsequent clean ups that may be required during the performance of this contract which occur as a result of or are contributed to by the actions of its agents, employees, or subcontractors. The contractor agrees to clean up such spills or leaks to the satisfaction of ARS and in a manner that complies with applicable Federal, state, and local laws and regulations. The cleanup shall be at no cost to ARS.

The contractor shall report all such spills or leaks, regardless of their quantity, to ARS. A written follow-up report shall be submitted to ARS no later than 24 hours after the initial telephonic report. The written report shall be in narrative form and as a minimum include the following:

1. Description of the item spilled (including identity, quantity, manifest no., etc.).
2. Whether amount spilled is EPA/state reportable, and if so whether it was reported, and to whom.
3. Exact time and location of spill including a description of the area involved.
4. Containment procedures initiated.
5. Summary of any communications contractor has with press, state officials, or Postal Service officials.
6. Description of clean-up procedures employed or to be employed at the site including final disposition and disposal location of spill residue.

The contractor must perform all operations in a prudent, conscientious, safe and professional manner. At a minimum, contractor's personnel and equipment shall comply with applicable Federal, state, and local laws, safety regulations and procedures, and contractor will ensure that its agents, employees, and subcontractors perform in a safe manner. The contractor shall ensure that all personnel involved in handling and packaging the hazardous and universal waste be trained for the level of expertise required for the proper performance of the task and, in particular, in the areas of chemical incompatibility, general first aid procedures and spills. Handling and personnel protective equipment shall be provided by the contractor and must be appropriate to ensure safe handling of the hazardous waste. The contractor agrees that his personnel and equipment are subject to safety inspections by ARS personnel and state authorities while on ARS property.

The contractor shall, without additional expense to the ARS, be responsible for obtaining any necessary licenses and permits, and for complying with any applicable Federal, state and local laws, codes, and regulations in connection with the execution of the work. This includes ensuring ARS hazardous waste is sent to licensed, permitted, and approved disposal sites.

For purposes of this contract, final treatment/disposal means either: treatment so that such wastes no longer meet the definition of a hazardous waste as defined in 40 CFR 261; or treatment of a waste by an RCRA handling method specified in 40 CFR Parts 264/265 appendix 1, Table 2, paragraph 2. Waste handling costs that describe methods of storage do not meet the definition of final treatment nor final disposal under this contract. Interim treatment of the waste, such that the waste still meets the definition of a hazardous waste as defined in 40 CFR 261 does not meet the definition of final treatment under this contract. Final disposal means disposal of a waste by a RCRA handling method specified in 40 CFR, parts 264/265, appendix 1, table 2, paragraph 3. All facilities used for interim treatment, final treatment, or final disposal of items on this contract shall have as a minimum, an EPA/state approved interim status permit showing EPA hazardous waste numbers described in 40 CFR 261, subparts c and d, for each waste the facility is permitted to handle.

Mere acceptance of the hazardous waste at a properly permitted treatment, storage, or disposal facility (TSDF) does not meet the definition of final treatment nor final disposal under this contract. It is the contractor's

responsibility to obtain all necessary documentation to prove that the final treatment or final disposal of all items (as defined in paragraph above) has been accomplished. This documentation shall be attached to the certificate of disposal and submitted with, or prior to, the invoices.

A uniform hazardous waste manifest is required for the removal from ARS property of all hazardous waste items. The contractor shall obtain and review all manifests for completeness and accuracy prior to removal of any hazardous or toxic wastes from USDA property. The contractor shall provide ARS with a copy of the manifest(s), land disposal restriction notification(s), and any other shipping documents for review by the appropriate ARS official at least 24 hours prior to removal, whenever possible. The pickup manifests will be reviewed and signed by the appropriate ARS official. Completed copies of all manifests shall be furnished to ARS, as well as submitted as attachments to all invoices. Manifests shall be submitted in such a manner as to comply with the timeliness prescribed by the US EPA regulations.

The contractor is required to provide the ARS with a copy of any manifest which documents the movement of the waste after it has departed the property within 30 calendar days after acceptance at the accepting facility. For example, if waste is shipped from the accumulation site to a facility for storage or treatment, which does not meet the definition of final disposal, then a manifest detailing the acceptance of the waste into the additional facility must be provided within the prescribed time frame.

Each manifest, as well as other documentation required herein shall be clearly and distinctly marked with the purchase order number as applicable. If blocks are not provided, the contract and delivery order information shall be placed in the upper right-hand corner of each document.

The contractor shall prepare a Certificate of Disposal. This certificate is to be submitted prior to the invoices. Any differences between the contract inventory and what was actually picked up or disposed of must be thoroughly described and documented.

4.0 Government Furnished

The federal government will not provide any tools, materials, machinery, or expertise for this contract. Upon signing in each day, the facility will be unlocked to provide access to the contractor. Contractors will be allowed on the premises Monday through Friday from 7:30AM-5:00PM. The facilities will be closed May 25, June 19, July 3, September 7, October 12, November 11, November 26, and December 25, 2026 for federal holidays.

5.0 Deliverables / Schedule

This contract requires the contractor package and remove waste chemicals. Time of completion is 15-30 days.

6.0 Contractor's Key Personnel

The contractor must have all licenses and certifications to package, transport, and dispose of dangerous or hazardous waste.

7.0 Security Requirements

There are no specific security requirements required for this contract.